

# Ashok Vishwakarma v. State of U.P. and Another

High Court of Judicature at Allahabad · Division Bench · 25 April 2023 · Writ - C No. 13177 of 2023 · **Disposed;**  
**consider objections and follow Supply Code**

## HEADNOTE

Writ against a notice of provisional assessment disposed of with a direction to respondent no. 2 to consider the objections dated 26 December 2022 and to follow the procedure prescribed under the U.P. Electricity Supply Code, 2005 while finalising the assessment. The assessment was not examined on merits.

## FACTUAL SUMMARY

Ashok Vishwakarma filed a writ petition challenging a notice of provisional assessment dated 26 December 2022, which required him to file an objection or else have the assessment treated as final. He admitted that an objection had already been filed and said it had not been decided. The Electricity Department told the Court that the objection dated 5 December 2022 would be decided before the proceedings were finalised.

## HOLDING-UNITS

### HOLDING-UNIT · U.P. Electricity Supply Code, 2005

provisional assessment — consideration of objections before finalisation

#### HOLDING

The writ is disposed of by directing respondent no. 2 to consider the objections, which the order dates as 26 December 2022, and to follow the procedure prescribed under the U.P. Electricity Supply Code, 2005 while finalising the assessment. The Electricity Department had stated that the objection dated 5 December 2022 would be decided before the proceedings were finalised. The Court did not decide whether the assessment was justified. ¶ 1

**FLAG** No clause number is cited. The operative direction dates the objections 26.12.2022, the date of the provisional-assessment notice, while the Department described the objection as dated 05.12.2022.

## PRINCIPLE TAGS

**UP-2005::procedure** The Court disposed of the writ by directing respondent no. 2 to consider the objections to the provisional assessment and to follow the procedure prescribed under the U.P. Electricity Supply Code, 2005 while finalising the assessment, without a merits decision. ¶ 1

## NOT DECIDED — NEGATIVE AUTHORITY

### NOT DECIDED — WHETHER THE PROVISIONAL ASSESSMENT WAS JUSTIFIED AND WHAT AMOUNT, IF ANY, IS PAYABLE

The petition was disposed of on a direction only to consider the objections and follow the Supply Code while finalising the assessment. ¶ 1